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‘You are treating this Constitution like a scrap of paper’

Syama Prasad Mookerjee and Jawaharlal Nehru clash over the First Amendment and Fundamental Rights



On 16 May 1951, Prime Minister Nehru moved the Constitution (First Amendment) Bill to be referred to a standing committee in Parliament, ominously declaring that the magnificent Constitution that he and his compatriots in the Constituent Assembly had framed only fifteen months earlier had been kidnapped and purloined by lawyers.[1] Fundamental Rights, civil liberties and individual freedom, ideas that had dominated political discourse in the nineteenth century, were relics of a static age that preserved existing social relationships and social inequalities, he argued. These ideas were now obsolete and outdated. In the middle of the twentieth century, bigger and better ideas were now in fashion, dynamic ideas of social reform and social engineering – ideas embodied in the grand programmes of the Congress party and enshrined in the Constitution as the Directive Principles of State Policy.[2]

Nehru had many reasons to be angry. The shining new schemes of social engineering that he had pioneered and championed – land reform, zamindari abolition, nationalization of industry, reservations for ‘backward classes’, a pliant press – were supposed to remake the social and political fabric of the new republic. Zamindari abolition and land reform had been a